

PROBATE INTAKE QUESTIONNAIRE — NORTH DAKOTA

We are sorry for your loss. This form gathers what the court needs to open the estate. Answer what you can; write “don't know” where you are not sure and we will help. You can fill it in on a computer or by hand and mail it back, or bring it to the office.

Attorney review required. This is a starting form, not legal advice. Fee, trust-account, contingency, and client-communication requirements differ by jurisdiction: an attorney must review and adapt this document, and confirm it against the applicable rules of professional conduct, before it is used with a client.

Your information

Your full legal name	Phone	Email	
Address	City	State	ZIP

About the person who died

Full legal name of the person who died

As it appears on the death certificate.

Any other names they used (nicknames, maiden name, prior married name) (if you know)

Date of death (month/day/year)

Their date of birth (if you know) (month/day/year)

Used to state their age on the court application.

Which state did they live in at the time of death?

Their permanent home, not where they happened to be.

Which county did they live in?

The court case is filed in this county.

The will

Did they leave a will? ☐ Yes ☐ No

Answer no if you are not aware of one. The office can help you look.

Do you have the original signed will (not a copy)? (if you know) ☐ Yes ☐ No

The court needs the original. A copy is still helpful — send it along.

What date was the will signed? (if you know) (month/day/year)

Printed near the signatures on the last page.

Property and value

Did they own any land, house, farmland, or mineral rights in North Dakota in their own name? ☐ Yes ☐ No

Property owned jointly with someone who is still living usually passes without probate; tell us anyway.

If yes, which North Dakota county or counties is that property in? (if you know)

Roughly, what is the total value of everything they owned in their own name (bank accounts, vehicles, investments, land), after subtracting any loans against it? (\$)

A best guess is fine. Do not count life insurance or accounts that name a beneficiary.

About you, the person opening the estate

Your full legal name

You are the person asking the court to open the estate.

Your relationship to the person who died

For example: spouse, daughter, son, brother, friend named in the will.

Does the will name you as the personal representative (executor)? (if you know) ☐ Yes ☐ No

Skip this if there is no will.

Your mailing address (street, city, state, ZIP)

Your phone number

Your email address (if you know)

Family and heirs

List the surviving spouse, children, and anyone else named in the will or closely related. For each person give: name, age, relationship, and mailing address — one person per line.

Include people who have died only if they left children of their own; note that they are deceased.

Is there anyone with an equal or better right than you to serve as personal representative — for example a surviving spouse, or someone the will names ahead of you? List their names, o

They will be asked to sign a short waiver so you can be appointed.

Court history

Has a court anywhere already appointed someone to handle this estate? ☐ Yes ☐ No

If yes: who was appointed, when, and in which county and state? (if you know)

Has a probate case for this person been started in any other court, in North Dakota or another state? ☐ Yes ☐ No

Has anyone told you they filed a 'demand for notice' about this estate with a court? ☐ Yes ☐ No

Most people have not. Answer no if you are unsure.

If yes, who filed it and where? (if you know)

What they owned and owed

Briefly list what they owned: bank accounts (bank name), vehicles, land, investments, business interests, and anything else of value.

Account numbers are not needed now.

What did they owe? Mortgages, loans, credit cards, medical bills, or taxes — or enter none. (if you know)

Approximate funeral and burial costs, and who paid them (if you know) (\$)

Papers to send with this form

If you have them, send a copy or a phone photo of: Death certificate (a photo is fine); The will and any codicils — bring the original to the office; send a photo or copy now; Recent statements for bank, investment, and retirement accounts; Deeds, vehicle titles, or mineral-rights papers; Funeral home bill or receipt; Any court papers you already received about this estate. Bring the original will to the office — do not mail it.

The information above is true to the best of my knowledge. I understand the office will confirm it with me before anything is filed with the court.

Signature

Date

Printed name

Date completed